

SUPREME COURT OF THE STATE OF NEW YORK File on:
COUNTY OF QUEENS

-----X Index No.
JAMEL DICKERSON

SUMMONS

Plaintiff,

Plaintiff designates QUEENS
County as the place of trial

-against-
DETECTIVE GEORGE BURKE, THE CITY OF
NEW YORK and THE NEW YORK CITY
POLICE DEPARTMENT

The Basis of venue is
Place of Occurrence

Defendants.

Plaintiff resides at:
533 Beach 25th Street
Queens, New York 11691

-----X County of Queens

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York).

PLEASE TAKE NOTICE that in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: New York, New York
April 29, 2016

Yours, etc.
THE PERECMAN FIRM, PLLC


PETER RIGELHAUPT
Attorney for the Plaintiff
JAMEL DICKERSON
250 West 57th Street, Suite 401
New York, New York 10107
(212) 977-7033

Defendant's Addresses:
Corporation Counsel of the City of New York
100 Church Street
New York, New York 10007

New York City Police Department
1 Police Plaza
New York, New York 10007

Detective George Burke
c/o 1 Police Plaza
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
JAMEL DICKERSON,

Plaintiff,

-against-

Index No.

VERIFIED
COMPLAINT

DETECTIVE GEORGE BURKE, THE CITY OF
NEW YORK and THE NEW YORK CITY
POLICE DEPARTMENT,

Defendants.
-----X

Plaintiff, JAMEL DICKERSON, by his attorneys, THE PERECMAN FIRM, P.L.L.C.,
complaining of the Defendants, alleges as follows:

1. This is an action to redress the deprivation under color of statute, ordinance, regulation, custom, or usage of rights, privileges, and immunities secured to the Plaintiff by the Fourth and Fourteenth Amendments to the Constitution of the United States pursuant to 42 U.S.C. §1983.

2. Plaintiff JAMEL DICKERSON is a resident of the State of New York, residing in the County of Queens, City and State of New York.

3. At all times referred to herein, Defendant, DETECTIVE GEORGE BURKE, was a member of the NEW YORK CITY POLICE DEPARTMENT ("NYPD") and was employed by and was an agent of THE CITY OF NEW YORK ("CITY").

4. Upon information and belief, at all times hereinafter mentioned, the CITY was and still is a municipal corporation duly organized and existing as such under and by the virtue of the laws of the State of New York.

5. Upon information and belief, at all times hereinafter mentioned the NYPD, is a department/political subdivision of Defendant CITY and is a municipal entity duly organized and existing under and by the virtue of the laws of the State of New York.

6. Upon information and belief, at all times hereinafter mentioned, the individual defendant to this action was acting for, upon, and in furtherance of the business of the NYPD and the CITY and within the scope of their employment.

7. Upon information and belief, that at all times hereinafter mentioned, the CITY, its agents, servants and employees operated, maintained and controlled the NYPD, including all the police officers and employees thereof.

8. The NYPD is a local governmental agency, duly formed and operating under and by virtue of the Laws and Constitution of the State of New York and the commissioner of the NYPD is responsible for the policies, practices and customs of the NYPD as well as the hiring, screening, training, supervising, controlling and disciplining of its police officers and civilian employees and is the final decision maker for that agency.

9. This action arises under the United States Constitution, particularly under the provisions of the Fourth and Fourteenth Amendments of the Constitution of the United States, and under Federal Law, particularly the Civil Rights Act, Title 42 of the United States Code, §1983, as well as the common law of the State of New York.

10. That each and all of the acts of the Defendants alleged herein were done by the Defendants as state actors acting under the color of law.

STATEMENT OF FACTS

11. On June 15, 2011, Plaintiff was arrested and charged with, among other crimes, first and second degree robbery after the vehicle he was driving was stopped by the New York City Police Department, including Defendant Detective James Burke.

12. Upon his arrest, Plaintiff was subjected to physical force and coercion, and coerced into signing a false statement regarding his purported involvement in certain crimes that Defendants were investigating.

13. This false statement indicated that Plaintiff was the driver of a car that allegedly had been used in the commission of certain crimes.

14. At the time that false statement was coerced from Plaintiff, Defendants knew that the complaining witnesses had identified the driver of the vehicle as a female.

15. Defendants supplied this false and coerced statement to the Queens County District Attorney's Office.

16. After Plaintiff's arrest on June 15, 2011, he remained incarcerated until January 16, 2013.

17. The charges against Plaintiff were dismissed on May 1, 2013 by Honorable Judge Barry Kron of the Supreme Court of the State of New York, County of Queens (case number 03245-2011).

AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF FOR
VIOLATION OF PLAINTIFF'S RIGHTS PURSUANT TO
42 U.S.C. §1983 AND THE FOURTH AND
FOURTEENTH AMENDMENTS VIA MALICIOUS PROSECUTION

18. Plaintiff, JAMEL DICKERSON, repeats, reiterates and realleges each and every allegation contained in the prior paragraphs with the same force and effect as if more fully and at length set forth herein.

19. That Plaintiff's rights have been violated under the Fourth Amendment of the United States Constitution pursuant to 42 U.S.C. §1983, in that Plaintiff was maliciously prosecuted by Defendants.

20. That Defendants, their agents, servants and employees, initiated, commenced and continued the underlying criminal proceeding against Plaintiff, without any legal justification and without probable cause for its commencement and/or continuation.

21. That Defendants' commencement and continuation of the underlying criminal proceeding against Plaintiff was done with malice and deliberate indifference to Plaintiff's rights.

22. Defendants further acted maliciously and in bad faith by coercing a false confession from Plaintiff, without which any suspicion of Plaintiff could not have ripened into probable cause.

23. The malicious prosecution was terminated in Plaintiff's favor on May 1, 2013 when all charges against Plaintiff were dismissed.

24. That by reason of the unlawful malicious prosecution, Plaintiff was subjected to pecuniary harms, great indignities, humiliation, anxiety, he was detained, forced to spend time in jail, forced to make court appearances, incur attorneys' fees and be subject to numerous other harms.

25. That by reason of the unlawful malicious prosecution, Plaintiff suffered a denial of his federal rights and constitutional rights and privileges.

26. That Defendants, who knew of the malicious prosecution and continued to allow and/or participate in the prosecution of Plaintiff, and who either directly participated in the violation of Plaintiff's rights, or who after learning of the violation failed to remedy the wrongs, are liable to Plaintiff for the violation of his rights pursuant to the Fourth Amendment.

27. That by reason of the aforesaid, the Plaintiff has been damaged in a sum in excess of the jurisdictional limits of the lower courts, and an award of attorney's fees is appropriate pursuant to 42 U.S.C. §1988.

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF FOR
VIOLATION OF PLAINTIFF'S RIGHTS PURSUANT TO
42 U.S.C. §1983 AND THE FOURTH AND
FOURTEENTH AMENDMENTS VIA THE
USE OF EXCESSIVE/UNREASONABLE FORCE

28. Plaintiff, JAMEL DICKERSON, repeats, reiterates and realleges each and every allegation contained in the prior paragraphs with the same force and effect as if more fully and at length set forth herein.

29. That Plaintiff's rights have been violated under the Fourth Amendment of the United States Constitution made applicable to the states via the Fourteenth Amendment pursuant to 42 U.S.C. §1983, in that Plaintiff was unlawfully subjected to excessive and unreasonable force by Defendant Detective George Burke.

30. That the excessive and unreasonable force that Plaintiff was subjected to was effected by Defendant Detective George Burke without authority of law and without any reasonable necessity to use any force, much less the excessive force he employed, and the force employed was without legal justification, without Plaintiff's consent, with malice and with an intent to inflict pain upon Plaintiff.

31. That as a direct result of the Defendants' actions, the Plaintiff was deprived of his rights, privileges and immunities Under the Fourth and Fourteenth Amendments of the United States Constitution.

32. That by reason of the unlawful use of excessive and unreasonable force, the Plaintiff was harmed physically, and was subjected to physical pain, humiliation, embarrassment, anxiety and continues to be subjected to various ongoing physical and emotional injuries.

33. That by reason of the aforesaid, the Plaintiff has been damaged in a sum in excess of the jurisdictional limits of the lower courts, and an award of attorney's fees is appropriate pursuant to 42 U.S.C. §1988.

WHEREFORE, Plaintiff demands judgment against Defendants on his First and Second Cause of Action, together with an award of reasonable attorney's fees pursuant to 42 U.S.C. §1988, and the costs and disbursements of this action; and such other and further relief as this Court may deem just and proper under the circumstances.

Dated: New York, New York
April 29, 2016

THE PERECMAN FIRM, P.L.L.C.

A handwritten signature in dark ink, appearing to read "Peter D. Rigelhaupt", is written over a horizontal line.

PETER D. RIGELHAUPT

Attorneys for Plaintiff

250 West 57th Street, Suite 401

New York, New York 10107

(212) 977-7033

VERIFICATION

PETER RIGELHAUPT, an attorney at law, duly admitted to practice in the Courts of this State, affirms under the penalties of perjury that:

He is a member of THE PERECMAN FIRM, P.L.L.C., attorneys for the plaintiff in the above entitled action. That he has read the foregoing **COMPLAINT** and knows the contents thereof, and upon information and belief, deponent believes the matters alleged therein to be true.

The reason this Verification is made by deponent and not by the plaintiff is that the plaintiff herein is not within the County where the plaintiff's attorneys maintain their office.

The source of deponent's information and the grounds of his belief are communications, papers, reports, and investigations contained in the file.

Dated: New York, New York
April 29, 2016


PETER RIGELHAUPT

JAMEL DICKERSON

Plaintiff

-against-

DETECTIVE GEORGE BURKE, THE CITY OF NEW YORK
and THE NEW YORK CITY POLICE DEPARTMENT

Defendant

SUMMONS AND VERIFIED COMPLAINT

THE PERECMAN FIRM, PLLC.
Attorneys for Plaintiff
JAMEL DICKERSON
250 West 57th Street, Suite 401
New York, New York 10107
(212) 977-7033 FAX (212) 977 7035

To:

a copy of the within is hereby admitted.

Service of

CERTIFICATION BY ATTORNEY

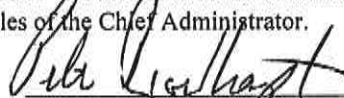
STATE OF NEW YORK)

) ss.:

COUNTY OF NEW YORK)

I, the undersigned, an attorney duly admitted to practice in the Courts of the State of New York, certify that, upon information and belief, formed after an inquiry reasonable under the circumstances, the presentation of the attached SUMMONS AND VERIFIED COMPLAINT and the contentions contained therein are not frivolous, as that term is defined in Section 130.1.1(c) of the rules of the Chief Administrator.

Dated: New York, New York
April 29, 2016


PETER RIGELHAUPT

PLEASE TAKE NOTICE:

____ Notice of Entry

____ Notice of Settlement

Yours, etc.,

THE PERECMAN FIRM, PLLC.